

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
THE CITY OF NEW YORK,

Plaintiff,

- against -

THE LAND AND BUILDING KNOWN AS
512 WEST 42nd STREET, also known as 510 WEST
42nd STREET, et al.,

Defendants.

-----X
STATE OF NEW YORK)

ss.:

COUNTY OF NEW YORK)

AFFIDAVIT OF SERVICE

Index Number: 450551/2025

Police Officer John Zizzo affirms the following to be true, under penalties of perjury,
pursuant to Rule 2106 of the Civil Practice Law and Rules:

That I am not a party in this matter and I am over 18 years of age.

On January 31, 2025, copies of the within **ORDER TO SHOW CAUSE, AFFIRMATION, EXHIBITS, RJL, NOTICE OF ELECTRONIC FILING, AND SUMMONS AND VERIFIED COMPLAINT**, were enclosed in United States Postal Service Express Mail Next Day Service postpaid wrappers properly addressed to the defendants as follows:

WEST 42ND STREET DEVELOPERS LLC
C/O Goldfarb & Fleece, LLP
560 Lexington Avenue, 6th Floor
New York, New York 10022

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as
510 WEST 42nd STREET, TAX BLOCK # 1070, TAX LOT # 20, COUNTY of NEW
YORK, CITY and STATE of NEW YORK

JOHN DOE
512 West 42nd Street
New York, New York 10036

JANE DOE
512 West 42nd Street
New York, New York 10036

BABY'S WEST 42 LLC
512 West 42nd Street
New York, New York 10036

defendants' last known addresses. Said wrappers were deposited into an official receptacle for the United States Postal Service.

At this time, a separate SUMMONS AND VERIFIED COMPLAINT was also served upon defendant THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK # 1070, TAX LOT # 20, COUNTY of NEW YORK, CITY and STATE of NEW YORK

WEST 42ND STREET DEVELOPERS LLC
C/O Goldfarb & Fleece, LLP
560 Lexington Avenue, 6th Floor
New York, New York 10022

by a copy of same being enclosed in a postpaid sealed wrapper, by certified mail, return receipt requested, properly addressed to defendant at the address noted above. Said wrapper was deposited into an official receptacle for the United States Postal Service.

That on January 30, 2025, deponent while at the subject premises located at 512 West 42nd Street, New York, New York, served the within **ORDER TO SHOW CAUSE, AFFIRMATION, EXHIBITS, RJL, NOTICE OF ELECTRONIC FILING, AND SUMMONS AND VERIFIED COMPLAINT**, upon:

Defendant JOHN DOE
Defendant JANE DOE
Defendant BABY's WEST 42 LLC

by delivering true copies thereof to Maureen Lupo, personally, who informed me that she is an employee and/or manager of the business operating within the subject premises.

Deponent describes the individual served as follows:

Sex: ☐ Male ☒ Female

☒ White Skin	☐ Under 5'	☐ Under 100 lbs.	☒ Black Hair	☐ 14 - 20 Yrs.
☐ Black Skin	☒ 5'0"-5'3"	☒ 100 - 130 lbs.	☐ Brown Hair	☐ 21 - 35 Yrs.
☐ Yellow Skin	☐ 5'4"-5'8"	☐ 131 - 160 lbs.	☐ Blond Hair	☒ 36 - 50 Yrs.
☐ Brown Skin	☐ 5'9"-6'0"	☐ 161 - 190 lbs.	☐ Gray Hair	☐ 51 - 65 Yrs.
☐ Red Skin	☐ Over 6'	☐ over 190 lbs.	☐ Red Hair	☐ Over 65 Yrs.
			☐ White Hair	
			☐ Balding	

That on January 30, 2024, deponent while at the subject premises located at 512 West 42nd Street, New York, New York served the within **ORDER TO SHOW CAUSE, AFFIRMATION, EXHIBITS, RJ, NOTICE OF ELECTRONIC FILING, AND SUMMONS AND VERIFIED COMPLAINT**, upon

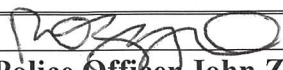
Defendant WEST 42ND STREET DEVELOPERS LLC

by posting copies of the same to the front door of the subject premises.

At this time, deponent also served the within **ORDER TO SHOW CAUSE, AFFIRMATION, EXHIBITS, RJ, NOTICE OF ELECTRONIC FILING, AND SUMMONS AND VERIFIED COMPLAINT** along with a separate **SUMMONS AND VERIFIED COMPLAINT** upon the defendant THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK # 1070, TAX LOT # 20, COUNTY of NEW YORK, CITY and STATE of NEW YORK the subject premises litigated in this matter, by POSTING OF SAME TO THE FRONT OF THE SUBJECT

PREMISES along with a TEMPORARY RESTRAINING ORDER sign.

I affirm this 31st day of January, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.



Police Officer John Zizzo